

GALLANT IAS ACADEMY
PRELIMS CUM MAINS BATCH 2027
POLITY
MODULE 2.9
PARLIAMENT - MAINS

INTRODUCTION

Parliament of India is established by **Article 79** of the Constitution. It comprises the President, the Lok Sabha (House of the People) and the Rajya Sabha (Council of States). The Parliament is often called the '**temple of democracy**' and is the supreme legislative authority in India. Its functioning covers structure, law-making, conduct of business, and powers and privileges of its members.

RAJYA SABHA AND ITS RELEVANCE

The Rajya Sabha is the upper house of Parliament, whose members are elected by the State Legislative Assemblies through Proportional Representation by Single Transferable Vote. It provides continuity to Parliament as it is a permanent house that cannot be dissolved.

Special Powers of Rajya Sabha (Unique / Exclusive Powers)

Power	Constitutional Provision
Authorise Parliament to legislate in the State List in national interest	Article 249 - by special majority
Creation of an All India Service	Article 312 - by special majority
Approval of State Emergency	If Lok Sabha stands dissolved when Proclamation under Article 356 needs approval
Removal of Vice President	Initiated in Rajya Sabha only; passed by effective majority of RS and simple majority of LS

Areas Where Rajya Sabha is Unequal with Lok Sabha

Area	Disadvantage of Rajya Sabha
Money Bill and Financial Bill 1 and Budget	Rajya Sabha has no power to vote on Money Bills (Art.110). It can only suggest amendments within 14 days; LS can accept or reject.
Joint Sitting	In joint sitting (Article 108), RS is outvoted since LS has more than double the members.
Article 75 - Responsibility of Council of Ministers	CoM is responsible only to Lok Sabha, not Rajya Sabha.

Rajya Sabha - Strengths and Weaknesses

Strengths of Rajya Sabha	Weaknesses of Rajya Sabha
Comprehensive Law Making: Acts as a revising chamber - prevents hasty, careless and defective legislation. Preserves the democratic ethos and spirit of the nation.	Inequity between states' seats: 9 states hold 50% of seats. Population as a criteria for allocation is an issue.

Eminent People: Nominated members (Zakir Husain, Alladi Krishnaswami, Satyendra Nath Bose, Salim Ali, Fali Nariman) enable participatory democracy with expertise.	Patronage Nominations: Nominees often act as debate-ducking backbenchers. Space for burnt-out politicians, party cronies and retired bureaucrats.
Federal Body: Represents state interests. Key example: role in passing the GST Bill by empowering state interests.	Limited role in Parliamentary Committees: RS members are under-represented.
Passage of Constitution Amendment Bills and Ordinary Legislation: Each house independently considers amendments.	Weak Revisory Role: Only three deadlocks with Lok Sabha in last 75 years - suggests limited actual scrutiny impact.

Relevance of Bicameralism

Arguments in Favour	Arguments Against
Different election methods ensure that non-dominant opinion making is accommodated (conservative bias - new radical ideas do not take over the country hastily).	Delay in lawmaking process.
Towards an interactive and participatory democracy.	Can be superfluous in case of dominance in both Lok Sabha and Rajya Sabha.
Passage of Constitution Amendment Bill and Ordinary Legislation requires broader consensus.	Non-domicile criteria removes the effect of true state representation. Domicile criteria is essential.
Federal body with a meaningful role in representing state interests (e.g., GST Bill).	Joint sitting: Rajya Sabha is overpowered due to numerical inferiority.

Way Forward - Agnihotri Committee Recommendation

The Agnihotri Committee (V.K. Agnihotri, former Secretary General of Rajya Sabha) has made recommendations for strengthening Rajya Sabha's role and improving the quality of parliamentary deliberation. Key recommendations include ensuring adequate time for debate, strengthening the revisory role and better representation of state interests.

PARLIAMENTARY SOVEREIGNTY: BRITISH VS INDIAN APPROACH

Compare and contrast the British and Indian approaches to Parliamentary Sovereignty. [UPSC Mains 2023, 15 Marks]

Feature	British Parliament	Indian Parliament
Concept of Sovereignty	Adopted the concept of Parliamentary Sovereignty. Parliament is supreme.	Does not adopt Parliamentary Sovereignty. In the Indian context, the Constitution is supreme.
Nature of Constitution	Ordinary law itself becomes the Constitution in an unwritten fashion.	Constitution is the supreme law of the land. Written and codified.
Amendments	Flexible amendments - can be amended like any	Rigid and Flexible approach - different procedures for different

	ordinary law by a simple majority.	articles. Some require special majority, some also require state ratification.
Checks on Legislative Excess	Excesses of the executive are kept in check, but excesses of the legislature are NOT kept in check (no judicial review of legislation).	Both excesses of the executive and legislative action are checked: Judicial review available for both.
Fundamental Rights	No codified fundamental rights limiting Parliament.	Fundamental Rights (Part III) limit the state, including Parliament.
Division of Legislative Power	No division of legislative power between federal units (unitary state).	There is division of power between the Union and States (Schedule VII - Union, State and Concurrent lists).
Basic Structure Doctrine	No doctrine of basic structure.	Doctrine of Basic Structure exists (Kesavananda Bharati case, 1973) - some features of the Constitution cannot be amended.
Suspensive Veto	No suspensive veto by the executive head.	President has a suspensive veto - can return a bill for reconsideration (except Money Bills).
Separation of Power	No strict separation of power.	Doctrine of separation of powers is present, though in a modified form.

PARLIAMENTARY ISSUES AT A GLANCE

1. PARLIAMENT: ISSUES RELATED TO STRUCTURE

Issue	Context	Way Forward
Age and Representation Gap	The average age of MPs in the 18th Lok Sabha is 56, with only 11% below the age of 40 - highlighting a significant mismatch between the demographic profile of the country and its lawmakers. National Youth Policy, 2014 emphasises youth participation in governance. Example: Sanna Marin of Finland.	Encourage younger candidates; political parties must have youth-focused inner democracy.
Gender Representation (Art.79)	Only 14% of MPs in the 18th Lok Sabha are women, with negligible improvement from the 17th Lok Sabha. Intersectionality among women is not addressed even	Implement 106th CAA in letter and spirit. Extend 106th CAA to Rajya Sabha.

	in the 106th Constitutional Amendment Act (Women's Reservation Bill).	
Hereditary Politics	Politics in India has increasingly become a family-dominated occupation, limiting opportunities for new and diverse voices.	Inner party democracy must be enforced.
Frozen Delimitation (Article 82)	Issues persist due to frozen constituency boundaries, leading to imbalances in representation.	Use equitable formulas like the Cambridge formula.
First Past the Post System (Article 81)	FPTP leads to disproportionate representation and wasted votes.	170th Law Commission Report: Promote Mixed Multi-Member Proportional Representation System.
Rajya Sabha Membership Criteria (Article 80)	Lack of domicile requirements for Rajya Sabha members affects the principle of federal representation.	Extension of domicile criteria under Article 80.
One MP Contesting Multiple Seats (Article 101)	Results in unnecessary by-elections, burdening the exchequer.	Strictly ensure that candidates do not contest from multiple seats.

2. PARLIAMENT: ISSUES RELATED TO FUNCTIONING

Issue	Facts / Context	Way Forward
Decline in Sitting Days	The number of sitting days in the Lok Sabha has reduced significantly from 121 days in 1952 to an average of 68 days since 2000.	NCRWC recommended a minimum of 120 sittings for the Lok Sabha and 100 for the Rajya Sabha.
Low Attendance	Attendance of MPs in the 17th Lok Sabha was 78%, reflecting inadequate participation.	Ethics Committee oversight on attendance issues.
Ineffective Parliamentary Committees	Only 16% of bills in the 17th Lok Sabha were referred to committees, undermining the detailed examination of legislation.	Adopt the US Congressional Committee System.
Criminalisation of Politics	Increasing the number of MPs with criminal records undermines credibility and integrity. ADR Reports: 46% MPs face criminal prosecution in the 18th Lok Sabha.	ADR vs UOI, 2002: Declare criminal antecedents. Fast Track Courts.

Lack of Deputy Speaker (Article 93)	The 17th Lok Sabha failed to elect a Deputy Speaker, breaking a long-standing parliamentary tradition.	Specify the time within which the Deputy Speaker must be elected.
Leader of Opposition	Challenges persist regarding the recognition and role of the Leader of the Opposition.	Adopt the Australian Model of Leader of Opposition.

3. PARLIAMENT: ISSUES RELATED TO CONDUCT OF BUSINESS

Issue	Facts / Context	Way Forward
Hasty Legislation	In the 17th Lok Sabha, 58% of bills were passed within two weeks of introduction. Important bills like the Women Reservation Bill and J&K Reorganisation Bill were passed within two days.	2014 Pre-Legislative Consultation Policy: Government must place draft bill in public domain for at least 30 days.
Neglect of Private Members' Bills	Only 2% of private members' bills were discussed in the 17th Lok Sabha, showing the limited role of individual MPs in shaping legislation.	More importance to be given to private members' bills by providing a specialised time period.
Budget Without Debate (Article 112)	Nearly 80% of the Union Budget was passed without discussion in the 17th Lok Sabha.	Strengthen the Department Related Standing Committees and Estimates Committee to scrutinise the budget.
Frequent Ordinances (Article 123)	Ordinances have increasingly been used to bypass Parliament, undermining the legislative process.	Constitutional Amendment to mandate discussion of an Ordinance within 30 days of commencement of a session of the House.
Joint Sitting Dynamics (Article 108)	The dominance of the Lok Sabha in joint sittings often marginalises the Rajya Sabha's voice due to its numerical strength.	Strengthen the role of Rajya Sabha in Joint Sitting.

4. PARLIAMENT: ISSUES RELATED TO POWERS AND PRIVILEGES

Issue	Facts / Context	Way Forward
Uncodified Parliamentary Privileges (Article 105)	Lack of clarity on privileges of MPs and their misuse creates controversies and affects transparency.	Codify privileges like the Australian Model.
Office of Profit (Article 102)	Ambiguity in defining and regulating the office of profit leads to disputes and disqualifications.	2nd ARC Recommendation: Advisory roles must be allowed without triggering disqualification.

Anti-Defection Law (Article 102, 10th Schedule)	The law has limitations, including delays in disqualification proceedings and misuse by political parties for partisan gains.	Recommendations of Halim Committee, Dinesh Goswami Committee: Refer disqualification petitions to independent Election Commission; set time limit.
Partisan Role of the Speaker (Article 93)	Allegations of bias in the Speaker's role affect the impartial functioning of Parliament.	V.S. Page Committee Recommendations on strengthening the impartiality of the Speaker.

CONCLUSION

The Indian Parliament, our **temple of democracy**, shines with achievements but faces challenges. Reforms can elevate it into a beacon of true participatory governance, empowering every citizen's voice and securing democracy's future.

PREVIOUS YEAR QUESTIONS - PRELIMS

- Rajya Sabha has equal powers with Lok Sabha in:**
 - The matter of creating new All India Services
 - Amending the Constitution
 - The removal of the government
 - Making cut motions

Which of the above are correct ?

(a) 1 and 2 (b) 2 and 3 (c) 1, 2 and 3 (d) 1, 2, 3 and 4
- The Parliament of India acquires the power to legislate on any item in the State List in the national interest if a resolution to that effect is passed by the [2016]**
 - Lok Sabha by a simple majority of its total membership
 - Lok Sabha by a majority of not less than two-thirds of its total membership
 - Rajya Sabha by a simple majority of its total membership
 - Rajya Sabha by a majority of not less than two-thirds of its members present and voting
- Which of the following special powers have been conferred on the Rajya Sabha by the Constitution of India? [2018]**
 - To change the existing territory of a State and to change the name of a State
 - To pass a resolution empowering the Parliament to make laws in the State List and to create one or more All India Services
 - To amend the election procedure of the President and to determine the pension of the President after his/her retirement
 - To determine the functions of the Election Commission and to determine the number of Election Commissioners
- We adopted parliamentary democracy based on the British model, but how does our model differ from that model? [2023]**
 - As regards legislation, the British Parliament is supreme or sovereign but in India, the power of the parliament to legislate is limited.
 - In India, matters related to the constitutionality of the Amendment of an Act of the Parliament are referred to the Constitution Bench by the Supreme Court.

Select the correct answer using the code given below:

(a) 1 only (b) 2 only (c) Both 1 and 2 (d) Neither 1 nor 2

PREVIOUS YEAR QUESTIONS - MAINS

1.	The role of individual MPs (Members of Parliament) has diminished over the years and as a result healthy constructive debates on policy issues are not usually witnessed. How far can this be attributed to the anti-defection law, which was legislated but with a different intention ? [10 marks]	2013
2.	The 'Powers, Privileges and Immunities of Parliament and its Members' as envisaged in Article 105 of the Constitution leave room for a large number of un-codified and unenumerated privileges to continue. Assess the reasons for the absence of legal codification of the 'parliamentary privileges'. How can this problem be addressed? [12.5 marks]	2014
3.	The Indian Constitution has provisions for holding joint sessions of the two houses of the Parliament. Enumerate the occasions when this would normally happen and also the occasions when it cannot, with reasons thereof. [15 Marks]	2017
4.	Discuss the role of the Public Accounts Committee in establishing accountability of the government to the people. [10 Marks]	2017
5.	Why do you think the committees are considered to be useful for parliamentary work? Discuss, in this context, the role of the Estimates Committee. [10 marks]	2018
6.	Individual Parliamentarian's role as the national lawmaker is on a decline, which in turn, has adversely impacted the quality of debates and their outcome. Discuss. [15 marks]	2019
7.	Rajya Sabha has been transformed from a 'useless stepney tyre' to the most useful supporting organ in the past few decades. Highlight the factors as well as the areas in which this transformation could be visible. [15 marks]	2020
8.	"Once a speaker, Always a speaker"! Do you think the practice should be adopted to impart objectivity to the office of the Speaker of Lok Sabha? What could be its implications for the robust functioning of parliamentary business in India. [10 marks]	2020
9.	Explain the constitutional provisions under which Legislative Councils are established. Review the working and current status of Legislative Councils with suitable illustrations. [15 marks]	2021
10.	Do Department-related Parliamentary Standing Committees keep the administration on its toes and inspire reverence for parliamentary control? Evaluate the working of such committees with suitable examples. [15 marks]	2021
11.	Discuss the role of the Vice-Presidents of India as the chairman of the Rajyasabha. [15 marks]	2022
12.	Discuss the essential conditions for the exercise of the legislative powers by the Governor. Discuss the legality of the re-promulgation of ordinances by the Governor without placing them before the Legislature. [15 marks]	2022
13.	Discuss the role of Presiding Officers of state legislatures in maintaining	2023

	order and impartiality in conducting legislative work and in facilitating best democratic practices. [15 marks]	
14.	Explain the structure of the Parliamentary Committee system. How far have the financial committees helped in the institutionalization of Indian Parliament? [15 marks]	2023
15.	Examine whether the constitutional office of the Lok Sabha Speaker has become vulnerable to partisan politics under the current anti-defection regime. What institutional changes are required to ensure the neutrality of the Lok Sabha Speaker in managing a polarised House?	2026



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